

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Jacobson	Team: Team # 4	CCRB Case #: 201409512	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 09/15/2014 6:38 PM	Location of Incident: § 87(2)(b) 60th Precinct stationhouse	18 Mo. SOL 3/15/2016	Precinct: 60		
Date/Time CV Reported Tue, 09/16/2014 12:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 09/16/2014 12:25 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POF Mariyam Askar	13045	950028	060 PCT
2. POM Michael Paulik	19162	948260	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Stanislav Mozheiko	08995	953148	060 PCT
2. POM Vadim Osilenker	17098	950988	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Mariyam Askar	Abuse: PO Mariyam Askar entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Michael Paulik	Abuse: PO Michael Paulik entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Michael Paulik	Abuse: At § 87(2)(b) in Brooklyn, PO Michael Paulik searched § 87(2)(b)'s property.	C . Substantiated
D . POF Mariyam Askar	Off. Language: At the 60th Precinct stationhouse, PO Mariyam Askar made remarks to § 87(2)(b) based upon religion.	D . Unsubstantiated

Case Summary

On September 15, 2014, at approximately 6:38 p.m., PO Mariyam Askar, PO Michael Paulik, PO Vadim Osilenker, and PO Stanislav Mozheiko of the 60th Precinct responded to a 911 call at § 87(2)(b) in Brooklyn regarding a physical altercation between § 87(2)(b) and her neighbor, identified as § 87(2)(b). § 87(2)(b) alleged the following: PO Askar and PO Paulik entered § 87(2)(b)'s residence (**Allegation A and B**) and arrested her. PO Paulik retrieved § 87(2)(b)'s keys from her purse, opened a container attached to the key ring, and inspected the contents (**Allegation C**). § 87(2)(b) was transported to the 60th Precinct stationhouse. While PO Askar was fingerprinting her, PO Askar asked if she was a Muslim and said, "Oh, if I would've known, I wouldn't have arrested you." (**Allegation D**).

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

As a result of § 87(2)(b)'s arrest, this case was ineligible for mediation (encl. F5-7). As of December 5, 2014, § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident (encl. M1). § 87(2)(b) [§§ 86(1)(3)&(4)] § 87(2)(c)

Civilian and Officer CCRB Histories

- This is the second CCRB complaint filed by § 87(2)(b) (encl. B3). § 87(2)(b)
- PO Askar has been a member of the NYPD for three years, and has had one previous CCRB allegation, which was not investigated due to complainant withdrawal. She has been cited once for failure to prepare a memo book entry § 87(2)(g)
- PO Paulik has been a member of the NYPD for five years and has had two previous CCRB allegations involving one case, which were not investigated due to complainant withdrawal. § 87(2)(g) (encl. B2).

Civilian Statements

Complainant/Victim: § 87(2)(b) (encl. D1-12)

Following a physical altercation with § 87(2)(b) § 87(2)(b) was inside her apartment when four uniformed officers arrived. § 87(2)(b) spoke to the four officers through her window and the officers informed her that they were there to investigate what had occurred. § 87(2)(b) opened her door and allowed the four officers to enter her residence. As she was closing the door behind the four officers, PO Askar and her partner, identified through investigation as PO Paulik, pushed the door open and rushed into the apartment. PO Askar informed § 87(2)(b) that she was under arrest and handcuffed her. PO Paulik began "digging" through her purse to find her identification, and removed her wallet, keys, and her make-up bag. § 87(2)(b)'s keys were on a key ring which also had a keychain container on it that held a vial of § 87(2)(b)'s deceased brother's ashes (encl. D9-11). PO Paulik slid the vial out of the container so that the ashes were exposed and said to her, "Oh, oh! What's this? Oh, look at this. What have we got here? Mollies?" § 87(2)(b) became very upset and informed PO Paulik that the substance was her brother's ashes. One of the other officers said to PO Paulik, "Dude. Come on. That's ashes."

§ 87(2)(b) was transported back to the 60th Precinct stationhouse. While she was being fingerprinted, PO Askar asked her if she was Arabic and if she was a Muslim. § 87(2)(b) told PO Askar that she was Muslim and alleged that PO Askar said, “Oh, if I would’ve known, I wouldn’t have arrested you.”

Additional Civilians Interviewed

- § 87(2)(b) s boyfriend, § 87(2)(b), was interviewed at the CCRB and provided testimony regarding the incident. However it was established during his interview that he was not present for the incident following the arrival of officers (encl. E1-6).

NYPD Statements

Subject Officer: PO MARIYAM ASKAR (encl. F1-12)

PO Askar was interviewed at the CCRB on November 24, 2014. PO Askar received a 911 call for an assault in progress at § 87(2)(b). This call had been made by § 87(2)(b) who explained to PO Askar and her partner, PO Paulik, that he had been assaulted by § 87(2)(b) and showed the officers video footage of the incident. Sometime during the incident, other officers arrived, but PO Askar could not recall when specifically, who the officers were, or what sector responded. The officers knocked on § 87(2)(b) s door, but no one answered, so they began to leave the location, when a second 911 came through. PO Askar stated that this call was made by § 87(2)(b) who was reporting being assaulted by her neighbor. PO Askar proceeded back to § 87(2)(b) s residence, where she spoke to her through a window. By this point, two other officers, identified as PO Osilenker and PO Mozheiko, had also arrived at the location, but PO Askar could not recall if these other officers were with her when she was at the window. PO Askar informed § 87(2)(b) that she could not take a report through the window, at which point § 87(2)(b) opened her door and allowed PO Askar and PO Paulik to enter. PO Askar stated that once inside § 87(2)(b) s residence, § 87(2)(b) showed her a video on her phone, and PO Askar informed § 87(2)(b) that she was under arrest and handcuffed her. PO Askar asked § 87(2)(b) where her identification was and § 87(2)(b) informed the officers that her ID was inside her wallet, in her purse, which she verbally described to the officers. PO Askar could not recall whether she or PO Paulik went into § 87(2)(b) s bag to retrieve the ID. PO Askar could not recall if a keychain was removed from § 87(2)(b) s purse or if any conversation about drugs occurred. While PO Askar was fingerprinting § 87(2)(b) at the 60th Precinct stationhouse, § 87(2)(b) asked her if she was Muslim and then said to PO Askar, “Oh, me too. Alhamdulillah, Alhamdulillah.” PO Askar denied saying, “Oh, if I would’ve known, I wouldn’t have arrested you.”

Subject Officer: PO MICHAEL PAULIK (encl. G1-8)

PO Paulik was interviewed at the CCRB on February 19, 2014. § 87(2)(g) PO Paulik could not recall how exactly § 87(2)(b) ended up opening her door, but stated § 87(2)(b) said nothing to the officers about their entrance into her residence. PO Paulik could not recall if only he and PO Askar entered § 87(2)(b) s residence at this time, but stated it was possible the other unit was present. PO Paulik stated that § 87(2)(b) did not have any video footage, but made statements to the officers regarding what had happened. He estimated that they were interacting with § 87(2)(b) for a few minutes before she was handcuffed. PO Paulik asked § 87(2)(b) for her keys in order to secure her residence. § 87(2)(b) informed PO Paulik her keys were in her purse, which she pointed out to him. When PO Paulik removed the keys, he noticed a little container with a screw-on lid on the key chain. PO Paulik opened the container and looked inside of it, at which point § 87(2)(b) became upset and told PO Paulik the container held her brother’s ashes. PO Paulik said nothing

about drugs to § 87(2)(b) PO Paulik could not recall PO Askar asking § 87(2)(b) at the 60th Precinct stationhouse if she was Muslim or telling her if she was, she would not have been arrested.

Witness Officer: PO STANISLAV MOZHEIKO (encl. H1-7)

PO Mozheiko was interviewed at the CCRB on March 17, 2015. PO Mozheiko and his partner, PO Osilenker, backed up PO Askar and PO Paulik, who responded to an assault in progress at § 87(2)(b). PO Mozheiko stated a male complainant, identified as § 87(2)(b) was present outside of the building and discussing an order of protection. PO Mozheiko could not recall ever going to an upstairs apartment, seeing PO Askar and PO Paulik go upstairs, or seeing either of them enter a second floor apartment. PO Mozheiko could not recall seeing any officer go into § 87(2)(b)'s purse, seeing any officer in possession of § 87(2)(b)'s keychain, or hearing any officer accuse § 87(2)(b) of having drugs in her possession. § 87(2)(b) was placed in PO Askar and PO Paulik's RMP after she was arrested and PO Mozheiko resumed patrol. He did not see any further interactions between § 87(2)(b) and PO Askar or hear PO Askar make any reference to § 87(2)(b)'s religion or being Muslim.

Witness Officer: PO VADIM OSILENKER (encl. I1-7)

PO Osilenker was interviewed at the CCRB on March 2, 2015. § 87(2)(g) After PO Askar and PO Paulik spoke with § 87(2)(b) all the officers proceeded to the second floor of the residence, to § 87(2)(b)'s apartment. PO Osilenker could not recall which officer knocked on § 87(2)(b)'s door, but it was either PO Askar or PO Paulik. After few minutes, PO Askar and PO Paulik told § 87(2)(b) they could not continue to speak with her through the window. § 87(2)(b) was somewhat hesitant, but she opened her door and allowed PO Askar and PO Paulik to enter her apartment. PO Osilenker and PO Mozheiko remained outside by the doorway, from where they could see into her apartment. PO Osilenker could not recall any conversation about a keychain or drugs. § 87(2)(b) asked the officers to lock her apartment, but PO Osilenker could not recall which officer did this and he did not handle any keys. PO Osilenker did not hear any conversation between § 87(2)(b) and PO Askar about religion or being Muslim.

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)
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Explanation of Subject Officer Identification

§ 87(2)(b) alleged that she spoke to officers through her window and allowed four officers to enter her residence, after which, two additional officers, PO Askar and PO Paulik, also entered her residence. However, by all officers' accounts, PO Askar and PO Paulik were the first unit to respond to the incident and the only officers to interact with § 87(2)(b) through her window. Although neither PO Askar nor PO Paulik could recall what additional unit arrived at the incident location, both stated the additional unit consisted of only two officers. Additionally,

PO Mozheiko and PO Osilenker, identified through investigation as the additional unit, both stated that PO Askar and PO Paulik had been the responding sector, Sector C, and were the only other officers on scene. Event Information § 87(2)(b) identifies Sector C as responding to § 87(2)(b)'s residence at 5:39 p.m., and Event Information § 87(2)(b) identifies Sector C as again responding to § 87(2)(b)'s residence at 6:15 p.m. (encl. J1-J10). The radio runs from the day of the incident also describe Sector C as arriving at the location, followed shortly by Sector D, which consisted of PO Mozheiko and PO Osilenker (encl. L5).

Recommendations

Allegation A – Abuse of Authority: PO Mariyam Askar entered § 87(2)(b) in Brooklyn.

Allegation B – Abuse of Authority: PO Michael Paulik entered § 87(2)(b) in Brooklyn.

It is undisputed that PO Askar and PO Paulik entered § 87(2)(b)'s residence. § 87(2)(b) alleged that she spoke to four officers through her window who said, “We’re here for you. The neighbors called for you. We’re here to investigate what’s going on.” The officers then asked to be let in. After confirming that the officers were there to assist her and not § 87(2)(b) who she had the altercation with, she opened her door and allowed the officers inside. As she was closing her door behind the four officers, PO Askar and PO Paulik pushed the door open and rushed into her apartment. PO Askar was not one of the officers § 87(2)(b) had seen through the window and did not know where she came from. § 87(2)(b) told PO Askar, “I didn’t invite you in. I invited them in, not you. Officer, I don’t want you in my apartment. Get out.” PO Askar and PO Paulik informed § 87(2)(b) that she was under arrest. § 87(2)(b) attempted to show a video of the altercation with § 87(2)(b) that was on her phone to the officers, but PO Paulik took her phone and PO Askar handcuffed her.

PO Askar and PO Paulik acknowledged entering § 87(2)(b)'s residence. Both officers stated that they first spoke with § 87(2)(b) through her window. PO Askar stated that she told § 87(2)(b) that she could not take her report through the window and the officers needed to be let inside. § 87(2)(b) then opened her door and PO Askar and PO Paulik entered her residence. PO Paulik could not recall how § 87(2)(b) came to open her door, but stated that § 87(2)(b) willingly let the officers enter. PO Osilenker stated that he never entered § 87(2)(b)'s residence, but observed PO Askar and PO Paulik speak to § 87(2)(b) through her window and heard them tell her that they could not continue to do so. PO Osilenker described § 87(2)(b) as a little hesitant, he could not recall how she replied to the officers, but then opened the door to her residence. PO Mozheiko could not recall seeing PO Askar or PO Paulik enter an apartment.

According to PO Askar’s testimony, the officers gained entry into § 87(2)(b)'s home under the guise of taking a report from her regarding the assault. PO Paulik stated that § 87(2)(b) was already considered under arrest when the officers were speaking with her through the window and that there was no reason for entering the apartment besides arresting her. PO Paulik stated that § 87(2)(b) was not told that she was under arrest prior to her opening the door.

A warrantless search is permissible if conducted on the basis of the consent of an authorized person. However, it is well-established that in the detection of many types of crimes, the Government is entitled to use decoys, and “the use of trickery and deception by law enforcement officers does not itself require or preclude a finding that an authorized person voluntarily consented to a search.” Only when the police misrepresentation of purpose is so extreme that a person is deprived of the ability to make a fair assessment of the need to surrender his privacy should the resulting consent not be considered. Innocuous ruses that do not create a false sense of exigent circumstances, and carried out in a low-key way have been judged as not too extreme as to deprive an individual of the ability to make a fair assessment to surrender his

privacy. United States v. Monzon-Luna, 2013 U.S. District LEXIS 166735 (E.D.N.Y. 2013) People v. Robinson, 779 N.Y.S.2d 40 (2004 N.Y. app. Div.) (encl. A1-7, A35-A36).

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegation A** and **B** be closed as exonerated.

Allegation C – Abuse of Authority: At § 87(2)(b) in Brooklyn, PO Michael Paulik searched § 87(2)(b) s property.

It is undisputed that PO Paulik removed § 87(2)(b) s keys from her purse and upon noticing a small container she keeps on her keychain, unscrewed it and looked inside. § 87(2)(b) stated that the container contains ashes of her deceased brother and it is a small metal canister that when unscrewed contains a glass vial with the ashes enclosed (encl. D9-11). § 87(2)(b) alleged that PO Paulik examined the container and opened it so the vial of ashes was exposed, then said, “Oh, oh! What’s this? Oh, look at this. What have we got here? Mollies?”

PO Paulik acknowledged going into § 87(2)(b) s purse and removing her keys. He stated that upon § 87(2)(b) s arrest, her residence needed to be secured and he removed the keys from the purse in full view of § 87(2)(b) after she had identified her purse to him. PO Paulik stated that when he removed § 87(2)(b) s keys, there were numerous objects on her keychain, one of which he described as “like an old film roll, about one inch round silver container.” PO Paulik unscrewed the container and exposed the inside glass vial, which he described as containing “white powdery substance.” PO Paulik stated that he personally did not know what the object was and opened it to check if there was contraband in it since it was being brought to the stationhouse. When he opened it, § 87(2)(b) became upset and informed him it was her brother’s ashes. PO Askar, PO Mozheiko, and PO Osilenker could not recall this portion of the incident.

Warrantless searches of closed containers incident to arrest may only be performed when an exigent circumstance is present. These exigent circumstances are defined as either fear for the safety of the public or arresting officer, or protection of evidence from destruction or concealment. Even if an item is within the immediate control or grabbable area of a suspect at the time of arrest, there must be a reasonable belief that the suspect may gain possession of a weapon or be able to destroy evidence before officers may search that item. People v. Jimenez, 22 N.Y.3d 717(2014) (encl. A30-35).

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

Allegation D – Offensive Language: At the 60th Precinct stationhouse, PO Mariyam Askar made remarks to § 87(2)(b) based upon religion.

§ 87(2)(b) alleged that while being fingerprinted at the 60th Precinct stationhouse, PO Askar asked her if she was Muslim and then said, “Oh, if I would’ve known, I wouldn’t have arrested you.”

PO Askar denied making this statement and stated during fingerprinting, § 87(2)(b) asked her if she was Muslim. When PO Askar answered affirmatively, § 87(2)(b) said, “Oh, me too. Alhamdulillah, alhamdulillah.” PO Paulik, PO Osilenker, and PO Mozheiko denied hearing PO Askar make any comments related to § 87(2)(b)’s religion or being Muslim. § 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Pod: 9

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date